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PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed Opposition to Government Threshold Motion

Never-filed date: March 30, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 7

Mateo Serrano opposes dismissal while preserving the factual concessions made on limited remand. He acknowledges that the isolated notice was delivered directly to the district clerk on March 12 and that Judge Elara Venn declined an extension after finding neither excusable neglect nor good cause.

Serrano's remaining argument is legal. Rule 4(b) is nonjurisdictional, and the government did not invoke it until March 25, after case opening and the limited-remand process. He asks the panel to hold that the sequence was not a sufficiently prompt invocation or, alternatively, to consider the expressly reserved complete-denial-of-allocation claim despite the one-day delay.

The opposition does not ask the appellate court to grant a Rule 4(b)(4) extension. It recognizes that the district inquiry has ended. It instead preserves objections to the government's invocation and requested consequence, and it asks for a merits schedule if dismissal is denied. This paper was never filed outside the isolated branch.

Nonjurisdictional Character and Invocation

United States v. Marsh, 944 F.3d 524 (4th Cir. 2019), classifies Rule 4(b) as a claim-processing rule, not a restriction on subject-matter jurisdiction. Serrano therefore argues that the government may forfeit reliance through delay and that the panel must examine invocation rather than dismiss on its own initiative.

The government calls March 25 its first substantive disposition filing. Serrano accepts that description but contends that thirteen days elapsed after the notice and that the government knew of the apparent timing issue during limited remand. He asks the court to treat that interval as more participation than prompt assertion.

No government brief or motion actually preceded March 25, however, and the court administered the remand. Serrano preserves his timeliness objection despite that record so the panel can decide whether a first filing two days after return satisfies Brantley and Local Rule 27(f)(2).

This argument does not convert Rule 4(b) into a jurisdictional rule or deny the branch calendar. It identifies the only potential forfeiture question left once the extension issue was returned.

The Returned Extension Decision Is Not Reopened

Serrano does not seek review of a factual finding about a claimed excuse because he offered none. His March 18 statement intentionally disclaimed an extension, Rule 4(c) deposit, tolling motion, clerk obstacle, and every justification for the delayed receipt.

The March 20 order consequently found neither excusable neglect nor good cause. That decision cannot be replaced by a new appellate extension request, and the opposition supplies no new timing fact. The branch notice remains dated March 12.

Serrano preserves only the proposition that a nonjurisdictional rule must be properly invoked before it compels dismissal. He also preserves his disagreement with the government's view that the substantive importance of the reserved claim is categorically irrelevant, while recognizing that Brantley addresses substance-neutral enforcement.

The panel should decide the invocation dispute on the returned record. It need not and should not send the matter back again. If the government's March 25 filing is prompt as a matter of law, the absence of an extension leaves no alternative timely date in this counterfactual docket.

Express Allocution Reservation and Waiver

The plea agreement broadly relinquishes conviction and sentencing appeals, including Guidelines disputes, but expressly preserves a claim that the sentencing court completely failed to offer Serrano a personal opportunity to allocute. The Rule 11 transcript records his understanding of both parts.

Serrano therefore agrees that the waiver cannot independently dismiss the reserved allocution issue. Ashford's treatment of a generic sentencing waiver does not change the wording of this agreement. The government itself limits its alternative waiver request to the role-enhancement target.

The opposition maintains that the reserved nature of the allocution claim supports allowing the appeal to proceed if Rule 4(b) was not promptly invoked. Serrano recognizes that Brantley treats the filing rule without regard to substantive strength, but he preserves the argument for the panel's express resolution.

If the court denies timing dismissal, it should decide waiver scope before merits briefing on the role adjustment and should set a separate schedule for allocution. If it grants timing dismissal, it should not reach the waiver or issue a merits view. This ordering avoids confusing two distinct threshold doctrines.

Requested Disposition and Service

Serrano asks the panel to deny the government's Rule 4(b) motion and direct ordinary briefing on the reserved allocution issue. He also asks the court to reject any waiver-based dismissal of that expressly excepted claim.

The opposition does not request a ruling that the enhancement was incorrectly applied at this stage. If the court reaches the alternative waiver ground, Serrano preserves his position but recognizes that the broad sentencing language covers a conventional Guidelines challenge. The precise enhancement merits should remain undecided on a threshold motion.

If the panel concludes that the March 25 invocation was prompt, Serrano asks it to base any dismissal solely on Rule 4(b) and leave waiver validity, waiver scope, role facts, and allocution merits unresolved. That limited reasoning would accurately reflect the branch record.

Celia Arden signs on March 30, 2026, and certifies fictional service on Bram Ives through the isolated training channel. The paper includes no real contact information, credential, sealed report, or operational offense description. It was never entered in the actual docket and expresses no prediction about the actual appeal.